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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

Case:

**PLAINTIFF'S OPPOSITION TO
DEFENDANT'S SPECIAL MOTION TO
STRIKE (ANTI-SLAPP) AND
DEMURRER**

Franciscus Dylan Rosario v. CSAA Insurance Exchange **Case No.:** CGC-25-631802

I. INTRODUCTION

Defendant CSAA Insurance Exchange's special motion to strike under Code of Civil Procedure section 425.16 depends on a threshold mischaracterization of Plaintiff Franciscus Dylan Rosario's claims. The motion reframes a course of alleged noncommunicative institutional conduct, namely, failure to conduct a reasonable investigation and concealment of material facts, as if it were a claim arising from protected petitioning activity. That reframing is legally insufficient under controlling California Supreme Court authority, which requires courts to identify the specific acts supplying the elements of the claim, rather than relying on generalized references to litigation context or downstream communications.

1 Specifically, Plaintiff's theory targets alleged institutional failures to obtain and consider readily
2 available objective materials (including third-party witness evidence reflected in the 911 recording
3 and related record), alleged gaps between what discovery and hearing transcripts show was known
4 or produced and what was later represented, and a file progression toward denial while noncom-
5 municative investigative choices allegedly sidelined that objective proof. Defendant now attempts
6 to reframe that alleged course of institutional misconduct as a claim arising principally from the
7 subsequent denial letter and other litigation communications rather than from the underlying omis-
8 sions and concealment.

9 Under Park v. Board of Trustees of California State University, the critical inquiry at step one is
10 whether the plaintiff's cause of action arises from protected activity, not whether protected activity
11 is present somewhere in the factual background. A claim does not arise from protected activity
12 merely because it follows or is accompanied by communications made in anticipation of litigation.
13 Here, the alleged wrongful conduct consists of institutional decisions and omissions, specifically,
14 the failure to obtain and consider readily available evidence and the concealment of that evidence,
15 not the act of communicating a denial. The denial letter is, at most, evidence of the alleged mis-
16 conduct, not the source of liability itself.

17 Defendant's motion relies on an overbroad reading of cases such as City of Cotati v. Cashman
18 and Martinez v. Metabolife International, Inc. to argue that the presence of litigation-related
19 communications satisfies step one. That argument fails because it substitutes a contextual inquiry
20 for the required gravamen analysis. As clarified in Park, courts must isolate the allegedly wrongful
21 acts themselves. When those acts are noncommunicative, such as business decisions, investigative
22 failures, or omissions, they do not become protected simply because they are later memorialized
23 in a communication.

24 The same overreach appears in Defendant's reliance on the litigation privilege under Civil Code
25 section 47(b). While the privilege broadly protects communications made in connection with ju-
26 dicial proceedings, it does not convert all underlying conduct into privileged activity. Kimmel v.
27 Goland draws a clear distinction between communicative acts (which may be privileged) and non-
28 communicative conduct (which is not). The privilege applies to publications and broadcasts made

1 in judicial proceedings, but it does not bar liability for independently tortious conduct merely be-
2 cause that conduct is related to litigation.

3 Similarly, Action Apartment Assn., Inc. v. City of Santa Monica confirms that prelitigation com-
4 munications may be privileged only when made in good faith and under serious consideration of
5 litigation. It does not establish a categorical rule immunizing all conduct associated with antici-
6 pated litigation, regardless of whether that conduct is communicative or lawful.

7 Defendant also invokes Flatley v. Mauro, but its reliance is incomplete. Flatley confirms that
8 anti-SLAPP protection does not apply where the asserted conduct is illegal as a matter of law.
9 While Plaintiff ultimately bears the burden of substantiating illegality, Flatley underscores that the
10 statute does not protect all conduct merely because it is framed as petitioning. The case therefore
11 reinforces, rather than undermines, the need for a precise inquiry into the nature of the acts at issue.
12 With respect to insurance law, Defendant overreads Moradi-Shalal v. Fireman's Fund Insurance
13 Companies as creating a broad bar against third-party claims. Moradi-Shalal eliminated private
14 causes of action under Insurance Code section 790.03 but did not abolish traditional common-
15 law tort remedies. Zhang v. Superior Court confirms that claims grounded in independent legal
16 duties, such as fraud or misrepresentation, remain viable when they do not depend on a prohibited
17 statutory cause of action. While Zhang addressed the first-party context, its reasoning confirms that
18 Moradi-Shalal does not create categorical immunity for insurers against all non-statutory claims.

19 Defendant's preclusion arguments are likewise overstated. California's primary rights doctrine, as
20 discussed in Crowley v. Katleman, requires courts to determine whether the present action seeks
21 to vindicate a distinct injury from that litigated previously. The underlying negligence action con-
22 cerned liability for a physical injury caused by an insured tortfeasor. This case concerns alleged
23 fraud and concealment by the insurer, implicating a different duty and a different injury. While
24 preclusion doctrines may apply where issues were actually litigated and necessarily decided, De-
25 fendant has not established that the alleged investigative failures and concealment were previously
26 adjudicated.

27 Finally, at step two, Plaintiff's burden is one of minimal merit, not proof by a preponderance or
28 clear and convincing evidence. Baral v. Schnitt makes clear that a claim survives if it is legally suf-

1 ficient and supported by a prima facie showing of facts that, if credited, would sustain a judgment.
2 Defendant's attempt to impose a heightened evidentiary burden at the pleading stage is inconsistent
3 with that standard.

4 In sum, Defendant's motion rests on three incorrect premises: first, that the presence of litigation-
5 related communications transforms all related conduct into protected activity; second, that the
6 litigation privilege immunizes noncommunicative or unlawful conduct; and third, that statutory
7 limitations on certain insurance claims eliminate all related common-law remedies. Properly ap-
8 plied, controlling California authority requires denial of the motion because Plaintiff's claims arise
9 from alleged noncommunicative conduct and are supported by at least minimal merit.

10 This opposition addresses both the special motion to strike under Code of Civil Procedure section
11 425.16 and the demurrer, if still calendared together with the motion.

12 **Appendix A**, infra, contains the authority-by-authority rebuttal to Defendant's Anti-SLAPP mem-
13 orandum (court file no. **10152120**), including procedural counters to the notice, request for judi-
14 cial notice, and defense declaration where noted. Plaintiff concurrently files Plaintiff's Evidentiary
15 Objections to Defendant's Declaration of Tyler J. O'Connell and Request for Judicial Notice and
16 Plaintiff's Declaration in Support of Opposition. Those objections are not duplicated in full in the
17 memorandum body.

18 If the Court grants leave to amend, the proposed Second Amended Complaint anchors this action
19 in unprotected conduct; ruling on the First Amended Complaint alone while amendment is sought
20 would disregard orderly amendment procedure.

21 **STANDARD OF REVIEW**

22 Code of Civil Procedure section 425.16 establishes a two-step inquiry. At **step one**, the defendant
23 bears the burden to show that the challenged claim arises from protected speech or petitioning
24 activity within the meaning of the statute (Park v. Board of Trustees of California State University
25 (2017) 2 Cal.5th 1057). If that showing is made, **step two** shifts the burden to the plaintiff to
26 demonstrate a **probability of prevailing on the claim**, which requires a **prima facie** showing
27 of facts, supported by **admissible evidence**, sufficient to sustain a favorable judgment if credited
28 (Baral v. Schnitt (2016) 1 Cal.5th 376). **Demurrer** review, by contrast, tests only whether the

1 complaint alleges facts sufficient to state a cause of action, accepting well-pleaded allegations as
2 true; it does not substitute for the plaintiff’s separate **evidentiary** burden at Anti-SLAPP step two.

3 **II. ARGUMENT: THE ANTI-SLAPP MOTION FAILS AT STEP ONE**

4 **A. The Gravamen of the Action is a Non-Communicative Institutional Failure**

5 Under Park v. Board of Trustees of California State University (2017) 2 Cal.5th 1057, the Anti-
6 SLAPP statute does not apply where the protected activity is merely incidental to unprotected
7 conduct. The gravamen here is the **non-communicative institutional failure** to investigate and the
8 “deny-delay-defend” scheme. The denial letter is merely an **evidentiary artifact** of that underlying
9 omission (Park v. Board of Trustees of California State University (2017) 2 Cal.5th 1057, 1064 [a
10 claim may be struck only if the speech itself is the wrong complained of, “and not just evidence of
11 liability or a step leading to some different act”]; City of Cotati v. Cashman (2002) 29 Cal.4th 69,
12 78).

13 **B. Channel Separation: Suing in the “Common Law Fraud Channel”**

14 Plaintiff maintains strict **Channel Separation** as authorized by Zhang v. Superior Court (2013) 57
15 Cal.4th 364. This action lies in the “Common Law Fraud Channel,” independent of the Insurance
16 Code. The detailed analysis of Zhang and the category error in CSAA’s citation practice is set forth
17 in **Section II**, ante, and in **Appendix A**, infra.

18 **C. Funding the Defense is Not “Petitioning”**

19 CSAA’s financial underwriting of the defense in the underlying action is a commercial, contractual
20 activity. CSAA was not a party to the underlying suit; it was a third-party financier. A non-
21 party insurer’s funding of a lawsuit to protect its own capital reserves is a commercial activity, not
22 petitioning for the redress of its own grievances.

23 Because the act of funding litigation is distinct from the communicative act of petitioning the court,
24 it does not constitute protected activity under Code of Civil Procedure section 425.16, subdivision
25 (e), and claims arising from this commercial conduct cannot be stricken on the theory that reserve
26 protection is itself protected petitioning.

1 **D. CSAA’s step-one cases do not disprove the Park gravamen**

2 CSAA strings Kashian v. Harriman (2002) 98 Cal.App.4th 892, A.F. Brown Elec. Contractor,
3 Inc. v. Rhino Elec. Supply, Inc. (2006) 137 Cal.App.4th 1118, Cabral v. Martins (2009) 177
4 Cal.App.4th 471, and Aronson v. Kinsella (1997) 58 Cal.App.4th 254 for the proposition that pre-
5 litigation communications are often protected. That is not the end of the inquiry. Park v. Board
6 of Trustees (2017) 2 Cal.5th 1057 requires identifying the **gravamen** of the claim. Here, the SAC
7 proposes to anchor the case on the **non-communicative** institutional failure to investigate and on
8 the denial letter as corroborating **evidence** of that omission (Park v. Board of Trustees of California
9 State University (2017) 2 Cal.5th 1057, 1064; City of Cotati v. Cashman (2002) 29 Cal.4th 69, 78).
10 Martinez v. Metabolife (2003) 113 Cal.App.4th 181, which CSAA itself cites for the “principal
11 thrust” test, is equally useful to Plaintiff: if the thrust is the omission, not the words, step one fails
12 for CSAA.

13 **III. ARGUMENT: THE LITIGATION PRIVILEGE DOES NOT BAR**
14 **THE CLAIMS**

15 The Litigation Privilege (Civil Code § 47(b)) protects communications, not conduct. In Kimmel
16 v. Goland (1990) 51 Cal.3d 202, the Court held that the litigation privilege does not protect non-
17 communicative acts. CSAA’s failure to investigate and its institutional suppression of claims are
18 noncommunicative acts. Furthermore, the privilege cannot be weaponized to shield extrinsic fraud,
19 unlawful conduct that prevents a party from presenting their case in court (Action Apartment Assn.,
20 Inc. v. City of Santa Monica (2007) 41 Cal.4th 1232).

21 **IV. ARGUMENT: THE PRIMARY RIGHTS DOCTRINE PREVENTS**
22 **PRECLUSION**

23 Under the Primary Rights Theory, this action is insulated from preclusion because the right to be
24 free from bodily injury litigated in the underlying negligence case is entirely distinct from the right
25 to be free from fraudulent business practices asserted here (Crowley v. Katleman (1994) 8 Cal.4th
26 666). Plaintiff further relies on the preservation of common law fraud claims in Moradi-Shalal v.
27 Fireman’s Fund Ins. Companies (1988) 46 Cal.3d 287, 304-305. The application of these doctrines

1 to CSAA’s “collateral attack” rhetoric is developed in **Appendix A**, infra.

2 **V. ARGUMENT: PLAINTIFF HAS ESTABLISHED A PROBABILITY** 3 **OF PREVAILING (STEP TWO)**

4 Once the burden shifts to step two, the plaintiff need only demonstrate that the claim has “minimal
5 merit.” Baral v. Schnitt (2016) 1 Cal.5th 376.

6 **Demurrer.** For demurrer purposes, the First Amended Complaint adequately alleges the elements
7 of fraud and unfair competition under Business and Professions Code section 17200, accepting as
8 true well-pleaded facts and reasonable inferences therefrom.

9 **Anti-SLAPP step two.** For step two, Plaintiff must offer a **prima facie** evidentiary showing
10 through **admissible** proof, not merely well-pleaded allegations. As detailed in the concurrently
11 filed **Declaration of Plaintiff Franciscus Dylan Rosario in Support of Opposition to Special**
12 **Motion to Strike and Demurrer** and the exhibits and record references described or authenticated
13 there (including the 911 recording, underlying transcripts, and discovery-related materials Plaintiff
14 relies upon for timing and knowledge), the evidence would permit a trier of fact to find minimal
15 merit for:

16 1. **Fraud:** A **prima facie** showing that misrepresentations or misleading half-truths (including
17 that an investigation was “concluded” while objective third-party and record evidence al-
18 legedly went unaddressed or misaligned with later representations), coupled with knowledge,
19 intent, justifiable reliance, and **independent** economic loss, could be found if credited; the
20 declaration and record excerpts supply the factual substrate for that showing beyond the face
21 of the pleading.

22 2. **UCL (Business & Professions Code § 17200):** A **prima facie** showing that the alleged
23 course of conduct qualifies as “unfair” or “fraudulent” under settled UCL standards and public
24 policy, supported by the same institutional-conduct facts rather than by naked allegations
25 alone.

26 CSAA’s reliance on Zhang v. Superior Court (2013) 57 Cal.4th 364 to suggest a categorical bar on
27 common law fraud claims is misplaced for the reasons set forth in **Section II**, ante, and **Appendix**
28 **A**, infra. Moradi-Shalal and Zhang both preserve claims that independently violate the law, such

as the pre-litigation fraud and related misconduct alleged here.

VI. OVERVIEW; APPENDIX A

Defendant's memorandum builds a high-volume citation wall around broad themes: protected petitioning, the litigation privilege, collateral attack, and insurance-channel limits. **Appendix A**, *infra*, walks through Defendant's authorities in cluster order with memorandum references (including table-of-authorities and argument pointers where provided). **Appendix A** provides Plaintiff's substantive legal rebuttal to the authorities in Defendant's memorandum and addresses application of the case law to the facts at bar, rather than the bibliographic validity of citations. The Court is asked to apply Park's gravamen framework, the conduct-versus-communication line from Kimmel, and the minimal-merit standard from Baral before treating citation volume as dispositive of step one or step two.

VII. CONCLUSION

The Defense's Anti-SLAPP motion represents a systemic attempt to replace the rule of law with a rule of atmospheric immunity. By systematically misapplying California's two-step framework, the Defense seeks to dissolve the specific, non-communicative gravamen of Plaintiff's claims, namely institutional failure to investigate and fraudulent concealment, into a general "wall of authority" that celebrates litigation protection while ignoring the conduct and speech distinction. This collective error is not merely a series of isolated citation mistakes; it is a structural failure to address the core of the case. The Defense collapses non-communicative institutional acts into "privileged communications," mischaracterizes direct fraud as an indirect collateral attack, and attempts to expand narrow statutory bars into a total common-law shield.

Under Park v. Board of Trustees and Kimmel v. Goland, this Court must look past the "mood music" of the Defense's petitioning narrative to identify the underlying injury-producing act. Because the gravamen of the action rests on unprotected, non-communicative conduct, and because Plaintiff has demonstrated the requisite "minimal merit" to proceed on these preserved common law theories, Defendant's Special Motion to Strike and Demurrer must be denied.

Respectfully submitted,

Franciscus Dylan Rosario Plaintiff In Pro Per

TABLE OF AUTHORITIES (DEFENSE CROSS-REFERENCE)

CASES

- Action Apartment Assn., Inc. v. City of Santa Monica (2007) 41 Cal.4th 1232 — Def. Memo [10152120]: (Not Cited)
- Adams v. Superior Court (1992) 2 Cal.App.4th 521 — Def. Memo [10152120]: 9:23
- Aronson v. Kinsella (1997) 58 Cal.App.4th 254 — Def. Memo [10152120]: 8:18, 9:10, 10:19
- A.F. Brown Elec. Contractor, Inc. v. Rhino Elec. Supply, Inc. (2006) 137 Cal.App.4th 1118 — Def. Memo [10152120]: 8:13
- Baral v. Schnitt (2016) 1 Cal.5th 376 — Def. Memo [10152120]: (Not Cited)
- Briggs v. Eden Council for Hope & Opportunity (1999) 19 Cal.4th 1106 — Def. Memo [10152120]: 11:21
- Cabral v. Martins (2009) 177 Cal.App.4th 471 — Def. Memo [10152120]: 9:19
- City of Colton v. Singletary (2012) 206 Cal.App.4th 751 — Def. Memo [10152120]: 10:10
- Club Members for an Honest Election v. Sierra Club (2008) 45 Cal.4th 309 — Def. Memo [10152120]: 6:18
- Crowley v. Katleman (1994) 8 Cal.4th 666 — Def. Memo [10152120]: (Not Cited)
- Dove Audio, Inc. v. Rosenfeld (1996) 47 Cal.App.4th 777 — Def. Memo [10152120]: 11:22
- Flatley v. Mauro (2006) 39 Cal.4th 299 — Def. Memo [10152120]: 9:1
- Fremont Reorganizing Corp. v. Faigin (2011) 198 Cal.App.4th 1153 — Def. Memo [10152120]: 6:20
- Gilbert v. Sykes (2007) 147 Cal.App.4th 13 — Def. Memo [10152120]: 7:13
- Graham-Sult v. Clainos (9th Cir. 2014) 756 F.3d 724 — Def. Memo [10152120]: 10:14
- Kashian v. Harriman (2002) 98 Cal.App.4th 892 — Def. Memo [10152120]: 8:11
- Kimmel v. Goland (1990) 51 Cal.3d 202 — Def. Memo [10152120]: (Not Cited)
- Martinez v. Metabolife (2003) 113 Cal.App.4th 181 — Def. Memo [10152120]: 7:15
- Moradi-Shalal v. Fireman's Fund Ins. Companies (1988) 46 Cal.3d 287 — Def. Memo

[10152120]: 15:3

- Park v. Board of Trustees of California State University (2017) 2 Cal.5th 1057 — Def. Memo [10152120]: (Not Cited)
- Singh v. Lipworth (2014) 227 Cal.App.4th 813 — Def. Memo [10152120]: 13:4
- Wouldridge v. Burns (1968) 265 Cal.App.2d 82 — Def. Memo [10152120]: 13:2
- Zhang v. Superior Court (2013) 57 Cal.4th 364 — Def. Memo [10152120]: 15:2

STATUTES

- Business & Professions Code § 17200 — Def. Memo [10152120]: 2:13, 15:1
- Civil Code § 47(b) — Def. Memo [10152120]: 2:14, 6, 10, 11, 12, 13
- Code of Civil Procedure § 425.16 — Def. Memo [10152120]: 1:22, 2:5, 6, 7, 8, 10, 11, 12, 16
- Insurance Code § 790.03 — Def. Memo [10152120]: 9:6, 15:3

APPENDIX A. PLAINTIFF’S FULL NARRATIVE REBUTTAL TO DEFENDANT’S ANTI-SLAPP PLEADINGS

Case: Franciscus Dylan Rosario v. CSAA Insurance Exchange, San Francisco Superior Court Case No. CGC-25-631802.

Purpose: For each authority, this appendix gives **memorandum citations**, a single **overview of Defendant’s use and analytical defect**, and **Plaintiff’s rebuttal**. A **master index** at the end lists authority, primary defect labels, and memorandum location.

Primary defense briefing: Memorandum of Points and Authorities in Support of Special Motion to Strike, lodged in this action as court file no. **10152120**. **Line numbers** are the numbered lines on each page of that document as filed (judicial council margin line grid). **TOA** means the Table of Authorities case-name or statute line; **argument** means the body section where Defendant develops the cite.

Related filings: Notice of Motion (court file no. 10152119); Request for Judicial Notice (court file no. 10152117); Declaration of Tyler J. O’Connell (court file no. 10152121).

Note: Below, defense analytical errors are labeled using formal descriptions (for example, over-

broad statutory abstraction; conflation of conduct and communication).

Note to the Court regarding Appendix A: This appendix provides Plaintiff's substantive legal rebuttal to the specific authorities relied upon in Defendant's Memorandum. It addresses the application of the case law to the facts at bar, rather than the bibliographic validity of the citations.

I. PROCEDURAL FILINGS (NOTICE, JUDICIAL NOTICE, DECLARATION)

Notice of Motion (court file no. 10152119)

Memorandum citations **Memorandum citations:** Notice, pp. 2-3, ll. 5-12 (relief: strike under Code of Civil Procedure section 425.16, fees under subdivision (c), Civil Code section 47(b)); p. 3, l. 16 (Code of Civil Procedure section 437c(g) / tentative ruling).

DEFENSE ERROR **Procedural overreach.** Treating the notice as if it discharges Defendant's merits burden on Anti-SLAPP step one or step two. Defendant asks the Court to strike the First Amended Complaint under the Anti-SLAPP statute, invokes the litigation privilege, and seeks fees. The notice frames the motion but does not carry Defendant's burden on the merits. The notice is procedural only. Plaintiff's opposition will show that the gravamen targets noncommunicative institutional conduct and omissions under Park v. Board of Trustees of California State University (2017) 2 Cal.5th 1057, and that step two requires only minimal merit under Baral v. Schnitt (2016) 1 Cal.5th 376. Themes previewed in the notice are answered on the merits in the memorandum sections cited infra.

Request for Judicial Notice (court file no. 10152117)

Memorandum citations **Memorandum citations:** RJN, pp. 2-4, ll. 1-28 per page (Evidence Code sections 452-453; numbered request paragraphs 1-20).

DEFENSE ERROR **Misuse of judicial notice.** Using RJN to prove truth of disputed facts or to equate filed records with collateral estoppel or merits findings. Defendant asks the Court to take

1 judicial notice of operative complaints, register of actions, MILs, orders, post-trial papers, appeal
2 papers, judgment notice, and related court records.

3 Judicial notice is appropriate for **existence and authenticity** of court records, not for the **truth**
4 of matters asserted inside them. Defendant may not use the RJN to prove that a jury verdict
5 forecloses fraud, omission, or triable dispute on Anti-SLAPP step two. See Herrera v. Deutsche
6 Bank National Trust Co. (2011) 196 Cal.App.4th 1366, 1375. Additional objections are set forth
7 in Plaintiff's Evidentiary Objections to Defendant's Declaration of Tyler J. O'Connell and Request
8 for Judicial Notice filed concurrently herewith.

9
10 **Declaration of Tyler J. O'Connell (court file no. 10152121)**

11 **Memorandum citations** **Memorandum citations:** Declaration, pp. 2-4, ll. 1-28 per page in the
12 clerk extract (numbered paragraphs and exhibit hooks).

13 **DEFENSE ERROR** **Evidentiary and legal-conclusion defects.** Framing ultimate legal conclu-
14 sions as facts; opinion and lack of personal knowledge on intent; service facts offered for improper
15 substantive purposes. The declarant authenticates exhibits, summarizes the underlying trial and
16 appeal, characterizes Plaintiff's allegations as targeting protected activity, and describes discovery
17 and service.

18 Objections include improper legal conclusions in place of fact (e.g. what claims "arise from,"
19 whether protected), lack of personal knowledge for intent of discovery, and narrow admissibility of
20 service stipulations. Additional detail appears in Plaintiff's Evidentiary Objections to Defendant's
21 Declaration of Tyler J. O'Connell and Request for Judicial Notice filed concurrently herewith.

22
23 **II. CLUSTER A. STEP ONE, PRE-LITIGATION DENIAL, AND EX-**
24 **PANSIVE ANTI-SLAPP**

25 Cluster A pairs analysis with **Overbroad Statutory Abstraction** (substituting broad statutory
26 purpose for Park* gravamen) and **Conflation of Conduct and Communication** (dissolving non-
27 communicative omissions into an undifferentiated Civil Code section 47(b) shield under Kimmel

1 v. Goland (1990) 51 Cal.3d 202).*

2 **Club Members for an Honest Election v. Sierra Club (2008) 45 Cal.4th 309**

3 **Memorandum citations** **Memorandum citations** (Defendant’s memorandum, court file no.
4 10152120): TOA, p. 3, l. 23; argument, Part IV opening, p. 10, ll. 10-23.

5 **DEFENSE ERROR Overbroad Statutory Abstraction.** Treating broad Anti-SLAPP construc-
6 tion as a per se step-one win and bypassing Park gravamen isolation. Defendant invokes the broad
7 remedial purpose of the Anti-SLAPP statute and the early dismissal of claims that interfere with
8 speech and petitioning as rhetorical dicta and policy atmospherics favoring an early strike. That
9 is an **Overbroad Statutory Abstraction (Park)**: while the opinion supports broad construction in
10 the abstract, Defendant overreads the case to imply that a broad statute means the defense automat-
11 ically prevails at step one. That reasoning fails because it substitutes a broad-construction mandate
12 for the mandatory “arising from” inquiry, incorrectly implying that a statute’s remedial purpose
13 creates a per se presumption of protection that overrides gravamen isolation.

14 **PLAINTIFF OPPOSITION** Plaintiff overcomes the defense’s misapplication of Club Members
15 for an Honest Election v. Sierra Club because broad construction is not a substitute for the manda-
16 tory step-one requirement to isolate the specific injurious act causing the injury. Under Park, the
17 remedial purpose of the statute cannot be used to collapse the gravamen inquiry into a generic
18 “litigation” bucket. Because the operative wrong here is a noncommunicative institutional omis-
19 sion, the defense’s framing fails to satisfy the statutory “arising from” nexus as a question of law
20 reviewed de novo.

21 _____
22 **Fremont Reorganizing Corp. v. Faigin (2011) 198 Cal.App.4th 1153**

23 **Memorandum citations** **Memorandum citations** (Defendant’s memorandum, court file no.
24 10152120): TOA, p. 3, l. 33; argument, Part IV opening, p. 10, ll. 10-23.

25 **DEFENSE ERROR Overbroad Statutory Abstraction.** Using statutory-breadth dicta as a
26 substitute for identifying the specific injurious act under Park. Defendant cites Faigin for the

high-level generality that the Anti-SLAPP statute must be construed broadly. In context, the case supports breadth of construction but does not dispense with the requirement to identify the specific injurious act causing the injury. The defense’s reliance on non-binding policy dicta regarding statutory purpose is an **Overbroad Statutory Abstraction** and an improper substitute for identifying the gravamen of the claim.

PLAINTIFF OPPOSITION Plaintiff overcomes the defense’s use of Fremont Reorganizing Corp. v. Faigin by correctly identifying the noncommunicative omission as the gravamen, whereas the defense mistakenly relies on mere ipse dixit regarding statutory breadth. Under Park and Martinez v. Metabolife (2003) 113 Cal.App.4th 181, the defense’s failure to address the specific injurious act renders their application of Faigin erroneous, as broad construction does not immunize institutional conduct that is merely incidental to protected speech.

City of Cotati v. Cashman (2002) 29 Cal.4th 69

Memorandum citations **Memorandum citations** (Defendant’s memorandum, court file no. 10152120): TOA, p. 3, l. 19; argument, Part IV opening, p. 10, ll. 10-23; and Part IV.B introductory block, p. 15, ll. 11-22.

DEFENSE ERROR Overbroad Statutory Abstraction. Using the two-step framework as if mere presence of protected communications completes step one without gravamen analysis. Defendant uses Cotati for the two-step Anti-SLAPP framework, which is accurate as hornbook, settled law. However, the defense then mistakenly treats the mere presence of “protected communications” as if they end the step-one inquiry without a gravamen analysis. That is an **Overbroad Statutory Abstraction**: using Cotati as a generic standard to bypass the mandatory gravamen filter for noncommunicative omissions.

PLAINTIFF OPPOSITION Plaintiff overcomes the defense’s application of City of Cotati v. Cashman because the existence of a two-step framework does not dispense with the necessity of the gravamen filter. The defense’s error lies in treating the mere presence of “protected communi-

cations” as the completion of step one, which Cotati does not support when the underlying injury arises from noncommunicative conduct.

Martinez v. Metabolife (2003) 113 Cal.App.4th 181

Memorandum citations **Memorandum citations** (Defendant’s memorandum, court file no. 10152120): TOA, p. 4, l. 9; argument, Part IV.A introductory block, p. 10, l. 24 through p. 12, l. 5.

DEFENSE ERROR Overbroad Statutory Abstraction. Misapplying principal-thrust analysis by assuming the gravamen must be communicative denial or litigation rather than institutional omission. Defendant cites Martinez for the “principal thrust” or gravamen test but applies it only to their own characterization of the case as “words about a claim,” an **Overbroad Statutory Abstraction** that assumes the principal thrust must always be the defendant’s communicative acts (denial or litigation) and cannot be an omission. That distinguishable use supports Plaintiff if the operative wrong is a noncommunicative failure.

PLAINTIFF OPPOSITION Plaintiff overcomes the defense’s reading of Martinez v. Metabolife by applying the “principal thrust” test to the actual injurious act, the institutional omission, rather than the defense’s self-serving characterization of the words in a denial letter. The defense’s application is mistaken because it ignores the “gist of the wrong” requirement, which in this case rests on noncommunicative conduct, not the speech that corroborated it.

Gilbert v. Sykes (2007) 147 Cal.App.4th 13

Memorandum citations **Memorandum citations** (Defendant’s memorandum, court file no. 10152120): TOA, p. 3, l. 35; argument, Part IV.A introductory block, p. 10, l. 24 through p. 12, l. 5.

DEFENSE ERROR Overbroad Statutory Abstraction. Converting expansive protected-activity language into categorical immunity from fraud and omission theories. Defendant cites Gilbert for

1 an expansive view of protected activity, erroneously treating it as a rule of categorical immunity
2 where any “litigation-themed” activity automatically triggers protection. That **Overbroad Statu-**
3 **tory Abstraction** attempts to use broad construction to ignore the gravamen of fraud and the
4 specific noncommunicative omissions alleged.

5 **PLAINTIFF OPPOSITION** Plaintiff overcomes the defense’s reliance on Gilbert v. Sykes
6 because a “litigation theme” is not a per se shield for institutional fraud. The defense erroneously
7 implies that “broad reading” equals absolute immunity, whereas Plaintiff’s use of Park establishes
8 that the gravamen inquiry remains the controlling gatekeeper at step one.

9
10 **Trinity Risk Mgmt. v. Simplified Lab. Staffing (2021) 59 Cal.App.5th 995**

11 **Memorandum citations** **Memorandum citations** (Defendant’s memorandum, court file no.
12 10152120): TOA, p. 4, l. 27; argument, Part IV.A introductory block, p. 10, l. 24 through p. 12, l.
13 5.

14 **DEFENSE ERROR** **Overbroad Statutory Abstraction; Conflation of Conduct and Com-**
15 **munication.** Elevating access-to-courts dicta into a rule that dissolves fraud into generic petition-
16 ing and erasing conduct-versus-communication separation. Defendant relies on the policy favor-
17 ing access to courts and broad Anti-SLAPP protection as dicta and background for their motion,
18 in service of the memo’s **Categorical Immunity Fallacy** move to dissolve fraud into a generic
19 atmosphere of protected petitioning. However, this opinion is not a holding that insurer institu-
20 tional investigation fraud is per se petitioning or that gravamen analysis disappears. Moving from
21 a policy favoring access to the conclusion that institutional fraud claims must be stricken is an
22 **Overbroad Statutory Abstraction** and an overbroad misapplication of the law.

23 **PLAINTIFF OPPOSITION** Plaintiff overcomes the defense’s citation of Trinity Risk Mgmt.
24 v. Simplified Lab. Staffing by distinguishing policy dicta from holding. The defense’s mistake is
25 in substituting rhetorical preference for access to courts for the mandatory requirement to identify
26 a protected “arising from” act, and in the related **Conflation of Conduct and Communication**

1 mistake of treating “communications” policy as a shield for noncommunicative conduct. Under
2 Kimmel, the noncommunicative “conduct” alleged by Plaintiff is not shielded by the “policy”
3 favoring protection of “communications.”

4
5 **Digerati Holdings v. Young Money Entertainment (2011) 194 Cal.App.4th 873**

6 **Memorandum citations** **Memorandum citations** (Defendant’s memorandum, court file no.
7 10152120): TOA, p. 3, l. 25; argument, Part IV.A introductory block, p. 10, l. 24 through p. 12, l.
8 5; and Part IV.B.1, p. 15, l. 23 through p. 16, l. 23.

9 **DEFENSE ERROR Conflation of Conduct and Communication.** Extending pre-litigation
10 communication privilege to noncommunicative omissions and institutional investigation failures.
11 Defendant cites Digerati for the proposition that privilege may extend to pre-litigation communi-
12 cations. While true in the abstract, the case does not hold that a failure to investigate is a commu-
13 nicative act or that an omission is a protected communication under Civil Code section 47(b). The
14 defense commits the **Conflation of Conduct and Communication** error: it collapses, without dif-
15 ferentiation, the Kimmel distinction between communication and conduct into an undifferentiated
16 section 47(b) shield.

17 **PLAINTIFF OPPOSITION** Plaintiff overcomes the defense’s misapplication of Digerati Holdings
18 v. Young Money Entertainment because a noncommunicative “act” is not a “communication”
19 merely because it occurs in a pre-litigation context. The defense erroneously attempts to elide that
20 distinction, whereas Kimmel and Park v. Board of Trustees of California State University (2017)
21 2 Cal.5th 1057, 1064, read with City of Cotati v. Cashman (2002) 29 Cal.4th 69, 78, confirm
22 that the underlying institutional omission remains actionable conduct regardless of any subsequent
23 privileged letters.

24
25 **Hunter v. CBS Broadcasting, Inc. (2013) 221 Cal.App.4th 1510**

26 **Memorandum citations** **Memorandum citations** (Defendant’s memorandum, court file no.
27 10152120): TOA, p. 3, l. 43; argument, Part IV.A introductory block, p. 10, l. 24 through p. 12, l.

1 5.

2 **DEFENSE ERROR Gravamen misidentification.** Misidentifying the operative act from which
3 claims arise by fixing on denial or litigation instead of institutional omission and concealment.
4 Defendant uses the “acts not motives” rule to anchor their claims in the denial and litigation acts
5 as the acts from which the claims arise. While the rule is accurate, Defendant mistakenly identifies
6 the wrong act as the gravamen, ignoring the institutional omission and concealment that form the
7 basis of Plaintiff’s theory.

8 **PLAINTIFF OPPOSITION** Plaintiff overcomes the defense’s use of Hunter v. CBS Broadcasting,
9 Inc. by correctly identifying the “act” as the institutional omission and concealment. The defense’s
10 error is in assuming that the “denial” is the only act from which the claim could arise, whereas Park
11 (2017) 2 Cal.5th 1057, 1064, and City of Cotati v. Cashman (2002) 29 Cal.4th 69, 78, allow the
12 denial letter to be framed as evidentiary of the preceding noncommunicative failure.

13
14 **Church of Scientology v. Wollersheim (1996) 42 Cal.App.4th 628**

15 **Memorandum citations** **Memorandum citations** (Defendant’s memorandum, court file no.
16 10152120): TOA, p. 3, l. 17; argument, Part IV.A introductory block, p. 10, l. 24 through p. 12, l.
17 5.

18 **DEFENSE ERROR Incomplete collateral-attack doctrine.** Overreading prior-judgment pro-
19 tection to ignore different primary rights and parties for carrier fraud duties. Defendant cites
20 Wollersheim for the idea that Anti-SLAPP protects against direct attacks on prior judgments. That
21 use is incomplete and misidentifies the dispositive inquiry because it fails to account for different
22 primary rights and parties. The existence of a prior judgment does not mean any new suit involving
23 the same accident is an impermissible attack.

24 **PLAINTIFF OPPOSITION** Plaintiff overcomes the defense’s reliance on Church of Scientology
25 v. Wollersheim because the existence of a prior judgment does not preclude a fraud action where

1 there is no identity of primary rights or parties. The defense’s application is incomplete because it
2 fails to account for the carrier’s independent duty to the claimant, which was never litigated in the
3 underlying personal injury trial.

4
5 **Bergstein v. Stroock & Stroock & Lavan LLP (2015) 236 Cal.App.4th 793**

6 **Memorandum citations** **Memorandum citations** (Defendant’s memorandum, court file no.
7 10152120): TOA, p. 3, l. 11; argument, Part IV.A introductory block, p. 10, l. 24 through p. 12, l.
8 5.

9 **DEFENSE ERROR Conflation of Conduct and Communication.** Equating litigation-related
10 statements with immunity for noncommunicative claim-handling and institutional conduct. Defen-
11 dant relies on Bergstein for the proposition that statements in connection with litigation are pro-
12 tected. That position is overbroad when applied to insurer claim-handling conduct. The defense
13 attempts a **Conflation of Conduct and Communication** maneuver, wrapping noncommunicative
14 institutional failures into the protection afforded to litigation-related speech and failing to identify
15 the specific injurious act as required by Park.

16 **PLAINTIFF OPPOSITION** Plaintiff overcomes the defense’s overbroad use of Bergstein v.
17 Stroock & Stroock & Lavan LLP by correctly separating “statements” from “claim-handling con-
18 duct.” The defense’s error lies in attempting to wrap noncommunicative institutional failures into
19 the protection afforded to litigation-related speech. Under Park, the gravamen remains the conduct,
20 not the speech.

21
22 **Kashian v. Harriman (2002) 98 Cal.App.4th 892**

23 **Memorandum citations** **Memorandum citations** (Defendant’s memorandum, court file no.
24 10152120): TOA, p. 4, l. 1; argument, Part IV.A.1, pp. 12-13, ll. 6-12; Part IV.A.2, p. 13, l.
25 13 through p. 14, l. 4.

1 **DEFENSE ERROR Overbroad Statutory Abstraction.** Treating an expansive view of litigation-
2 related activity as categorical immunity that bypasses principal-thrust and Park analysis. Defendant
3 cites Kashian for an “expansive view” of litigation-related activities, treating it as a rule of categor-
4 ical immunity that bypasses the “principal thrust” test. That **Overbroad Statutory Abstraction**
5 erroneously assumes that “expansive” construction allows the court to ignore the mandatory grava-
6 men separation that distinguishes speech from the operative wrong.

7 **PLAINTIFF OPPOSITION** Plaintiff overcomes the defense’s misapplication of Kashian v.
8 Harriman because an “expansive view” is not a substitute for the “principal thrust” test. The
9 defense’s error is in assuming that “expansive” means all-encompassing, whereas Plaintiff’s use of
10 Park demonstrates that the gravamen inquiry must still isolate the specific injurious act, which in
11 this case is noncommunicative.

12
13 **A.F. Brown Elec. Contractor, Inc. v. Rhino Elec. Supply, Inc. (2006) 137 Cal.App.4th 1118**
14 **Memorandum citations** **Memorandum citations** (Defendant’s memorandum, court file no.
15 10152120): TOA, p. 3, l. 5; argument, Part IV.A.1, pp. 12-13, ll. 6-12.

16 **DEFENSE ERROR Overbroad Statutory Abstraction.** Leaping from contemplated litiga-
17 tion to fraud immunity and treating the letter as the sole gravamen. Defendant uses A.F. Brown
18 for the rule that pre-litigation statements are protected when litigation is genuinely contemplated.
19 However, they make an **Overbroad Statutory Abstraction**, a categorical leap from “contem-
20 plated litigation” to “fraud immunity,” ignoring that a false representation can be evidence of a
21 noncommunicative wrong and that communication does not erase the gravamen of the underlying
22 institutional fraud.

23 **PLAINTIFF OPPOSITION** Plaintiff overcomes the defense’s use of A.F. Brown Elec. Contractor,
24 Inc. v. Rhino Elec. Supply, Inc. because “contemplated litigation” does not immunize institutional
25 fraud. The defense’s error is in treating the “letter” as the only relevant act, whereas Park (2017)
26 2 Cal.5th 1057, 1064, read with City of Cotati v. Cashman (2002) 29 Cal.4th 69, 78, allow the

1 letter to be framed as an evidentiary artifact of the underlying fraudulent investigation, which is
2 not protected petitioning activity.

4 **Adams v. Superior Court (1992) 2 Cal.App.4th 521**

5 **Memorandum citations** **Memorandum citations** (Defendant’s memorandum, court file no.
6 10152120): TOA, p. 3, l. 7; argument, Part IV.A.2, p. 13, l. 13 through p. 14, l. 4.

7 **DEFENSE ERROR** **Categorical Immunity Fallacy; Conflation of Conduct and Commu-**
8 **nication.** Reading Adams as erasing all fraud theories and collapsing conduct into privileged
9 communications. Defendant treats Adams as the memo’s **Categorical Immunity Fallacy** and as a
10 **Conflation of Conduct and Communication** to suggest that all alleged fraud in connection with
11 litigation is privileged. That undifferentiated reading incorrectly elides the distinction between
12 conduct and speech, overreading the authority to imply that it wipes out the Kimmel conduct line
13 and equitable doctrines that limit privilege in cases involving fraud on the court.

14 **PLAINTIFF OPPOSITION** Plaintiff overcomes the defense’s misapplication of Adams v. Superior
15 Court because “litigation privilege” only protects “words,” not the underlying “conduct.” The
16 defense’s error lies in its **Categorical Immunity Fallacy / Conflation of Conduct and Com-**
17 **munication** attempt to use Adams as a categorical bar to all fraud claims, ignoring the Kimmel
18 preservation of liability for noncommunicative acts and Action Apartment Assn., Inc. v. City of
19 Santa Monica (2007) 41 Cal.4th 1232 (discussing limits on extending Civil Code section 47(b)
20 where unlawful conduct impedes a party’s access to justice).

22 **Aronson v. Kinsella (1997) 58 Cal.App.4th 254**

23 **Memorandum citations** **Memorandum citations** (Defendant’s memorandum, court file no.
24 10152120): TOA, p. 3, l. 9; argument, Part IV.A.1, pp. 12-13, ll. 6-12; Part IV.A.3, p. 14, l.
25 5 through p. 15, l. 10.

1 **DEFENSE ERROR Conflation of Conduct and Communication.** Treating imminent litigation
2 as converting institutional omissions into protected expression or fraud immunity. Defendant
3 cites Aronson to infer that because litigation was imminent, the insurer’s investigation and denial
4 are per se protected. That **Conflation of Conduct and Communication** reasoning is legal error
5 because imminent litigation does not convert a noncommunicative institutional omission into
6 protected expression or immunize institutional fraud.

7 **PLAINTIFF OPPOSITION** Plaintiff overcomes the defense’s reliance on Aronson v. Kinsella
8 because “contemplated litigation” does not transform a noncommunicative “omission” into “ex-
9 pression.” The defense’s error is in assuming that the litigation context automatically protects the
10 preceding failure to investigate, whereas Kimmel and Park confirm that the gravamen remains the
11 conduct, not the speech.

12
13 Cabral v. Martins (2009) 177 Cal.App.4th 471

14 **Memorandum citations** **Memorandum citations** (Defendant’s memorandum, court file no.
15 10152120): TOA, p. 3, l. 15; argument, Part IV.A.2, p. 13, l. 13 through p. 14, l. 4.

16 **DEFENSE ERROR Conflation of Conduct and Communication; Overbroad Statutory Ab-**
17 **straction.** Assuming intertwined communications make the letter the inevitable gravamen of the
18 entire action. Defendant relies on Cabral for the idea that communications intertwined with a fil-
19 ing qualify as petitioning. While true in context, the defense overreads the case to assume that the
20 entire claim must “arise from” the letter, a **Conflation of Conduct and Communication / Over-**
21 **broad Statutory Abstraction** that ignores that intertwined communications can be evidentiary
22 while the gravamen remains noncommunicative institutional conduct.

23 **PLAINTIFF OPPOSITION** Plaintiff overcomes the defense’s use of Cabral v. Martins by cor-
24 rectly separating “intertwined communications” from the “gravamen.” The defense’s error lies in
25 its assumption that because a letter is intertwined with a filing, the entire claim must “arise from”
26 that letter. Under Park (2017) 2 Cal.5th 1057, 1064, read with City of Cotati v. Cashman (2002)

29 Cal.4th 69, 78, the letter is merely evidence of the non-protected institutional omission.

People ex rel. Fire Ins. Exchange v. Anapol (2012) 211 Cal.App.4th 809

Memorandum citations **Memorandum citations** (Defendant’s memorandum, court file no. 10152120): TOA, p. 4, l. 15; argument, Part IV.A.1, pp. 12-13, ll. 6-12.

DEFENSE ERROR Overbroad Statutory Abstraction. Treating contemplation-of-litigation and compliance tropes as fraud immunity and as dispositive of gravamen. Defendant uses Anapol to suggest that regulatory compliance or the contemplation of litigation proves that no fraudulent investigation can be pleaded. That **Overbroad Statutory Abstraction** misframes the dispositive issue because factually plausible imminent litigation is not a fraud immunity rule and does not decide the gravamen of a noncommunicative concealment.

PLAINTIFF OPPOSITION Plaintiff overcomes the defense’s misapplication of People ex rel. Fire Ins. Exchange v. Anapol because “genuine contemplation” and “regulatory compliance” are not per se shields for “fraud.” The defense’s error is in misapplying the “contemplation” rule to a gravamen inquiry that rests on noncommunicative concealment, which Park (2017) 2 Cal.5th 1057, 1064, read with City of Cotati v. Cashman (2002) 29 Cal.4th 69, 78, confirm is not the protected speech that supplies the gravamen.

Laker v. Bd. of Trustees (2019) 32 Cal.App.5th 745

Memorandum citations **Memorandum citations** (Defendant’s memorandum, court file no. 10152120): TOA, p. 4, l. 7; argument, Part IV.A.1, pp. 12-13, ll. 6-12; Part IV.B.1, p. 15, l. 23 through p. 16, l. 23.

DEFENSE ERROR Overbroad Statutory Abstraction. Generalizing official-proceeding analogy while ignoring absent-illegality limits and fraud allegations. Defendant analogizes insurer investigation to Laker’s holding that internal investigations may qualify as “official proceedings,” an **Overbroad Statutory Abstraction** that generalizes Laker beyond its facts. That analogy is

distinguishable because the defense ignores the “absent illegality” language in Laker. Plaintiff specifically alleges illegality, concealment, and business practices that do not fit the facts of Laker.

PLAINTIFF OPPOSITION Plaintiff overcomes the defense’s analogy to Laker v. Bd. of Trustees. Allegations of “illegality” and “systematic concealment” fall within an exception that Laker itself acknowledges to the “official proceeding” characterization. The defense’s error is in attempting to generalize Laker to “all investigations,” whereas Plaintiff’s specific allegations of fraud remove this case from the Laker ambit.

Huntingdon Life Sciences, Inc. v. Stop Huntingdon Animal Cruelty USA, Inc. (2005) 129 Cal.App.4th 1228

Memorandum citations **Memorandum citations** (Defendant’s memorandum, court file no. 10152120): TOA, p. 3, l. 45; argument, Part IV.B introductory block, p. 15, ll. 11-22.

DEFENSE ERROR Conflation of Step One and Step Two. Importing probability and substantiation rhetoric into step one and blurring Anti-SLAPP stages. Defendant uses Huntingdon to introduce probability-of-prevailing language into a step-one posture. That **Conflation of Step One and Step Two** (the impermissible collapse of step two into step one) is legal error because merits-based rhetoric cannot substitute for the mandatory step-one gravamen inquiry. Treating citation volume as ending step one confuses the distinct stages of the Anti-SLAPP analysis.

PLAINTIFF OPPOSITION Plaintiff overcomes the defense’s use of Huntingdon Life Sciences, Inc. v. Stop Huntingdon Animal Cruelty USA, Inc. because “probability” language applies at step two, on the prima facie showing. The defense’s **Conflation of Step One and Step Two** folds step-two merits rhetoric into step one and attempts to bypass the mandatory gravamen inquiry. Under Park and Baral, step one must be satisfied before the court reaches whether Plaintiff has shown a prima facie case and minimal merit.

III. CLUSTER B. FUNDING, IN-COURT CONDUCT, AND FEDERAL PERSUASIVE AUTHORITY

City of Colton v. Singletary (2012) 206 Cal.App.4th 751

Memorandum citations **Memorandum citations** (Defendant’s memorandum, court file no. 10152120): TOA, p. 3, l. 21; argument, Part IV.A.3, p. 14, l. 5 through p. 15, l. 10.

DEFENSE ERROR Overbroad Statutory Abstraction. Equating commercial funding and underwriting with the protected act of filing motions or petitioning. Defendant cites Colton to claim that funding litigation is “petitioning” because filing motions is protected activity. That level-of-abstraction error overreaches by asserting that commercial business decisions and funding underwriting are petitioning. Under Park, the commercial conduct behind the motion must be isolated from the protected act of filing.

PLAINTIFF OPPOSITION Plaintiff overcomes the defense’s misapplication of City of Colton v. Singletary because “filing a motion” is not the same as “funding a business practice.” The defense’s error lies in its level-of-abstraction error, attempting to wrap commercial underwriting and non-party funding into the definition of “petitioning.” Under Park, the specific injurious act remains the commercial conduct, not the incidental court filings.

Graham-Sult v. Clainos (9th Cir. 2014) 756 F.3d 724

Memorandum citations **Memorandum citations** (Defendant’s memorandum, court file no. 10152120): TOA, p. 3, l. 37; argument, Part IV.A.3, p. 14, l. 5 through p. 15, l. 10.

DEFENSE ERROR Misplaced federal authority. Using persuasive Ninth Circuit authority to bypass mandatory California Park gravamen methodology. Defendant cites this federal case for the proposition that representations to the court are protected. That reliance on non-binding, persuasive authority is error because it attempts to use federal dicta to override California’s state-law gravamen methodology. Binding state authorities like Park control the “arising from” and “gist

of the wrong” analysis on this record.

PLAINTIFF OPPOSITION Plaintiff overcomes the defense’s reliance on Graham-Sult v. Clainos because federal persuasive authority cannot override state methodology. The defense’s error is in treating a non-binding federal case as a means to bypass Park’s requirements. Under California law, the “gist of the wrong” inquiry is mandatory and controls over any persuasive federal shortcut.

Dove Audio, Inc. v. Rosenfeld (1996) 47 Cal.App.4th 777

Memorandum citations **Memorandum citations** (Defendant’s memorandum, court file no. 10152120): TOA, p. 3, l. 27; argument, Part IV.A.3, p. 14, l. 5 through p. 15, l. 10.

DEFENSE ERROR **Overbroad Statutory Abstraction.** Treating preparatory-communications protection as categorical immunity without gravamen filtering. Defendant uses Dove as a bridge to categorical immunity, claiming that because preparatory communications are protected, the entire claim is barred. That ignores that the gravamen filter still applies. Symmetry between statutes construed in pari materia does not erase the noncommunicative, extrinsic fraud, and gravamen limits established by Park and Kimmel.

PLAINTIFF OPPOSITION Plaintiff overcomes the defense’s use of Dove Audio, Inc. v. Rosenfeld because symmetry between statutes does not create immunity from gravamen analysis. The defense’s error is in treating “preparatory acts” as a categorical shield, whereas Park and Kimmel confirm that if the gravamen is noncommunicative conduct, the preparatory context does not trigger Anti-SLAPP protection.

Home Ins. Co. v. Zurich Ins. Co. (2002) 96 Cal.App.4th 17

Memorandum citations **Memorandum citations** (Defendant’s memorandum, court file no. 10152120): TOA, p. 3, l. 41; argument, Part IV.A.1, pp. 12-13, ll. 6-12.

1 **DEFENSE ERROR False analogy (non sequitur).** Importing settlement-context privilege
2 rhetoric to defeat institutional fraud and concealment theories. Defendant cites Home Ins. to
3 suggest that “even bad faith lies can be privileged” in a settlement context. That citation is dis-
4 tinguishable because Plaintiff’s theory involves institutional investigation fraud and concealment
5 of objective records, not the narrow settlement-limit misrepresentation addressed in the case. The
6 inference is a non sequitur: a privilege in one context does not mean all fraud theories fail.

7 **PLAINTIFF OPPOSITION** Plaintiff overcomes the defense’s citation of Home Ins. Co. v.
8 Zurich Ins. Co. by distinguishing a “settlement misrepresentation” from an “institutional omis-
9 sion.” The defense’s error is the non sequitur that “privilege in one context” means “all fraud
10 theories fail.” Kimmel preserves liability for conduct, and Plaintiff’s theory is anchored in non-
11 communicative concealment, not the narrow settlement lie addressed in Home Ins.

12 13 **IV. CLUSTER C. LITIGATION PRIVILEGE, BRIGGS, AND FLATLEY** 14 **POLICY**

15 **Briggs v. Eden Council for Hope & Opportunity (1999) 19 Cal.4th 1106**

16 **Memorandum citations** **Memorandum citations** (Defendant’s memorandum, court file no.
17 10152120): TOA, p. 3, l. 13; argument, Part IV.B.1, p. 15, l. 23 through p. 16, l. 23.

18 **DEFENSE ERROR Overbroad in pari materia bridge.** Treating Briggs as erasing Action
19 Apartment and Flatley limits and Park gravamen. Defendant uses Briggs to imply a blanket im-
20 munity that erases exceptions for extrinsic fraud or illegal conduct. While the case bridges the two
21 statutes in pari materia for qualifying communications, it is overbroad to suggest that this bridge
22 eliminates the Action Apartment and Flatley limits. The bridge does not dispense with the Park
23 gravamen filter.

24 **PLAINTIFF OPPOSITION** Plaintiff overcomes the defense’s overbroad application of Briggs
25 v. Eden Council for Hope & Opportunity because a bridge between statutes does not erase excep-

tions to those statutes. The defense’s error lies in assuming that “protected statements” automatically immunize related noncommunicative “conduct” or “illegal acts.” Under Action Apartment and Flatley, the bridge does not cover extrinsic fraud or illegal conduct.

Hagberg v. California Federal Bank (2004) 32 Cal.4th 350

Memorandum citations **Memorandum citations** (Defendant’s memorandum, court file no. 10152120): TOA, p. 3, l. 39; argument, Part IV.A.1, pp. 12-13, ll. 6-12; Part IV.B.1, p. 15, l. 23 through p. 16, l. 23.

DEFENSE ERROR **Conflation of Conduct and Communication.** Extending pre-filing communication privilege to noncommunicative institutional failures. Defendant cites Hagberg for the rule that privilege applies to pre-filing statements. That rule is distinguishable because the defense misapplies it to noncommunicative institutional failures. Collapsing an omission into a communication overreads the case and ignores the Kimmel line separating noncommunicative conduct from speech.

PLAINTIFF OPPOSITION Plaintiff overcomes the defense’s misapplication of Hagberg v. California Federal Bank by correctly identifying “omissions” as “conduct,” not “communications.” The defense’s mistake is in its attempt to collapse the Kimmel distinction, whereas Hagberg confirms that the privilege only applies to “pre-filing communications” and does not extend to the noncommunicative institutional failures alleged here.

Laffer v. Levinson (1995) 34 Cal.App.4th 117

Memorandum citations **Memorandum citations** (Defendant’s memorandum, court file no. 10152120): TOA, p. 4, l. 5; argument, Part IV.B.1, p. 15, l. 23 through p. 16, l. 23.

DEFENSE ERROR **Overbroad privilege.** Converting litigation privilege into a total tort shield ignoring conduct and extrinsic-fraud limits. Defendant uses Laffer to claim that the litigation privilege is a total defense to all torts in a litigation context. That position is overbroad and ignores

1 the Kimmel and Action Apartment limits. Privilege as a tort defense is restricted to qualifying
2 communications and does not provide an undifferentiated shield for institutional fraud and conduct.

3 **PLAINTIFF OPPOSITION** Plaintiff overcomes the defense’s reliance on Laffer v. Levinson
4 because a “privilege defense” is not a shield for conduct. The defense’s error is in assuming
5 that all torts vanish in a litigation context, whereas Kimmel and Action Apartment confirm that
6 noncommunicative conduct and extrinsic fraud remain actionable notwithstanding the litigation
7 privilege.

8
9 **Pollock v. University of Southern California (2003) 112 Cal.App.4th 1416**

10 **Memorandum citations** **Memorandum citations** (Defendant’s memorandum, court file no.
11 10152120): TOA, p. 4, l. 17; argument, Part IV.B.1, p. 15, l. 23 through p. 16, l. 23.

12 **DEFENSE ERROR** **Categorical Immunity Fallacy.** Using doubts-favor-privilege rhetoric to
13 avoid gravamen, exceptions, and Park analysis. Defendant uses the “doubts favor privilege” formu-
14 lation as a universal solvent to avoid gravamen and exception analysis. That reasoning is unsound
15 because a standard formulation regarding the scope of a privilege cannot erase the mandatory anal-
16 ysis required by Park, Action Apartment, and Flatley. Doubts about a privilege do not dispense
17 with the necessity of identifying a protected act.

18 **PLAINTIFF OPPOSITION** Plaintiff overcomes the defense’s use of Pollock v. University
19 of Southern California because “doubts favor privilege” does not mean privilege swallows the
20 gravamen inquiry. The defense’s error lies in its attempt to use this standard formulation as a
21 categorical substitute for the mandatory analysis required by Park, Action Apartment, and Flatley.
22 Doubts about the scope of a privilege do not dispense with the necessity of identifying a protected
23 “arising from” act.

1 **L.G. v. M.B. (2018) 25 Cal.App.5th 211**

2 **Memorandum citations** **Memorandum citations** (Defendant’s memorandum, court file no.
3 10152120): TOA, p. 4, l. 3; argument, Part IV.A introductory block, p. 10, l. 24 through p. 12, l.
4 5.

5 **DEFENSE ERROR Misapplication to facts.** Applying communication-based formulations to
6 a complaint whose gravamen is alleged noncommunicative institutional conduct. Defendant cites
7 the Hagberg formulation in this case to argue that every claim is communication-based. That
8 is an accurate but narrow use that fails to reach Plaintiff’s noncommunicative gravamen. The
9 defense erroneously assumes that because the test is correct, it must apply to Plaintiff’s theory of
10 institutional failure, which is anchored in conduct rather than speech.

11 **PLAINTIFF OPPOSITION** Plaintiff overcomes the defense’s application of L.G. v. M.B. be-
12 cause an accurate test must be applied to the correct acts. The defense’s error is in assuming that
13 “claims are words,” whereas Plaintiff’s theory is anchored in noncommunicative institutional fail-
14 ures. The Hagberg formulation cannot be used to strike a claim whose gravamen is conduct, not
15 speech.

16
17 **Flatley v. Mauro (2006) 39 Cal.4th 299**

18 **Memorandum citations** **Memorandum citations** (Defendant’s memorandum, court file no.
19 10152120): TOA, p. 3, l. 31; argument, Part IV.A.1, pp. 12-13, ll. 6-12.

20 **DEFENSE ERROR Selective citation.** Mining finality policy while underplaying illegal-conduct
21 exclusion from Anti-SLAPP protection. Defendant mines Flatley for “finality” policy while ignor-
22 ing its central holding that illegal conduct is categorically excluded from Anti-SLAPP protection.
23 That selective reading is misleading because it attempts to use the decision as total authority for
24 finality while ignoring the very exception Plaintiff invokes. Under the full Flatley decision, allega-
25 tions of systematic concealment and institutional fraud survive the strike.

1 **PLAINTIFF OPPOSITION** Plaintiff overcomes the defense’s selective reading of Flatley v.
2 Mauro because policy does not override holding. The defense’s error lies in mining the decision for
3 finality-related dicta while ignoring its central holding that illegal conduct is categorically excluded
4 from Anti-SLAPP protection. Under the full Flatley decision, Plaintiff’s allegations of systematic
5 concealment and institutional fraud survive the strike.

7 **V. CLUSTER D. COLLATERAL ATTACK, VOID JUDGMENT, ESTOP-** 8 **PEL, AND FEDERAL POLICY**

9 **F.E.V. v. City of Anaheim (2017) 15 Cal.App.5th 462**

10 **Memorandum citations** **Memorandum citations** (Defendant’s memorandum, court file no.
11 10152120): TOA, p. 3, l. 29; argument, Part IV.B.2, p. 16, l. 24 through p. 17, l. 9.

12 **DEFENSE ERROR** **Collateral attack overbreadth.** Treating generic collateral-attack defini-
13 tion as a per se bar without primary-rights and party analysis. Defendant uses the generic definition
14 of “collateral attack” to argue that this fraud action is automatically barred. That argument is dis-
15 tinguishable because a generic definition does not resolve the “Primary Rights Wall” inquiry under
16 Crowley v. Katleman (1994) 8 Cal.4th 666. Different primary rights and different parties (in-
17 sured vs. carrier) break the inference that a fraud action is an impermissible attack on a negligence
18 judgment.

19 **PLAINTIFF OPPOSITION** Plaintiff overcomes the defense’s application of F.E.V. v. City
20 of Anaheim because an accurate definition does not yield a per se bar. The defense’s error is
21 in assuming that no distinct claims can exist, whereas Crowley and the Primary Rights Theory
22 confirm that a fraud action against a carrier involves a different primary right and different parties
23 than the underlying personal injury trial.

1 **Rico v. Nasser Bros. (1943) 58 Cal.App.2d 878**

2 **Memorandum citations** **Memorandum citations** (Defendant’s memorandum, court file no.
3 10152120): TOA, p. 4, l. 19; argument, Part IV.B.2, p. 16, l. 24 through p. 17, l. 9.

4 **DEFENSE ERROR Collateral attack overbreadth.** Assuming void-on-the-face framing abol-
5 ishes extrinsic fraud and independent carrier duties. Defendant cites Rico for collateral-attack
6 definitions to argue that a judgment not void on its face allows no fraud action. That incorrectly
7 assumes that such a judgment abolishes the extrinsic fraud doctrine. California law specifically
8 preserves the extrinsic fraud doctrine and the assertion of independent primary rights against non-
9 party carriers.

10 **PLAINTIFF OPPOSITION** Plaintiff overcomes the defense’s use of Rico v. Nasser Bros. be-
11 cause a judgment not void on its face does not abolish extrinsic fraud. The defense’s error is
12 in incorrectly assuming that no fraud action can ever follow a judgment, whereas California law
13 specifically preserves the extrinsic fraud doctrine and the assertion of independent primary rights
14 against non-parties.

15
16 **Wouldridge v. Burns (1968) 265 Cal.App.2d 82**

17 **Memorandum citations** **Memorandum citations** (Defendant’s memorandum, court file no.
18 10152120): TOA, p. 4, l. 31; argument, Part IV.B.2, p. 16, l. 24 through p. 17, l. 9.

19 **DEFENSE ERROR Misidentification of claim.** Treating fraud on independent duties as an
20 impermissible voiding attack on the judgment. Defendant cites the “void on its face” rule to argue
21 that Plaintiff’s fraud case is a barred collateral attack. That misidentification of the dispositive
22 issue overreads the case by assuming that a fraud action for independent misrepresentations seeks
23 to “void” the underlying judgment. Under Crowley, a fraud case is not a collateral attack if it rests
24 on a different primary right.

1 **PLAINTIFF OPPOSITION** Plaintiff overcomes the defense's overbroad application of Wouldridge
2 v. Burns because an accurate narrow rule cannot be used to abolish the extrinsic fraud doctrine.
3 The defense's error lies in its misidentification of the claim, assuming that no fraud action is al-
4 lowed unless the judgment is void on its face. Under Crowley, a fraud case is not a collateral attack
5 if it rests on a different primary right than the case that went to judgment.

6
7 **Singh v. Lipworth (2014) 227 Cal.App.4th 813**

8 **Memorandum citations** **Memorandum citations** (Defendant's memorandum, court file no.
9 10152120): TOA, p. 4, l. 25; argument, Part IV.B.2, p. 16, l. 24 through p. 17, l. 9.

10 **DEFENSE ERROR Preclusion overbreadth.** Simplistic relitigation narrative without strict
11 collateral estoppel and res judicata elements. Defendant invokes Singh for a simplistic relitigation
12 narrative that bypasses the actual elements of collateral estoppel and res judicata. That misidentifi-
13 cation incorrectly assumes that the underlying trial decided everything about the accident, ignoring
14 that the carrier's fraudulent investigation was never actually litigated and involves different duties
15 and parties.

16 **PLAINTIFF OPPOSITION** Plaintiff overcomes the defense's invocation of Singh v. Lipworth
17 because the elements of issue preclusion and claim preclusion must be strictly met. The defense's
18 error is in eliding identity of rights and assuming that no fraud action can ever proceed after a
19 judgment. Under Singh, preclusion requires that the issues be actually litigated, which the carrier's
20 fraudulent investigation was not.

21
22 **United States v. Throckmorton (1878) 98 U.S. 61**

23 **Memorandum citations** **Memorandum citations** (Defendant's memorandum, court file no.
24 10152120): TOA, p. 4, l. 29; argument, Part IV.B.3 (fraud subpart), pp. 17-19, l. 10 on p. 17
25 through l. 28 on p. 19.

1 **DEFENSE ERROR Non-California law substitution.** Substituting federal policy rhetoric for
2 California primary-rights and preclusion doctrine. Defendant uses 19th-century federal policy
3 rhetoric to suggest that California preclusion law is replaced by a general policy against repeated
4 litigation. That reliance on non-binding federal dicta is unsound because federal rhetoric cannot
5 override the specific primary-rights and preclusion requirements of California law, which control
6 the outcome on this record.

7 **PLAINTIFF OPPOSITION** Plaintiff overcomes the defense's reliance on United States v. Throckmorton
8 because federal policy and dicta are not substantive California law. The defense's error is in at-
9 tempting to replace state methodology with 19th-century federal platitudes, whereas the California
10 Primary Rights Theory and specific preclusion doctrines control the outcome here.

11
12 **VI. CLUSTER E. FRAUD ELEMENTS, DAMAGES, STANDING, ZHANG,**
13 **AND MORADI-SHALAL**

14 **Service by Medallion v. Clorox Co. (1996) 44 Cal.App.4th 1807**

15 **Memorandum citations** **Memorandum citations** (Defendant's memorandum, court file no.
16 10152120): TOA, p. 4, l. 21; argument, Part IV.B.3, pp. 17-19, l. 10 on p. 17 through l. 28
17 on p. 19.

18 **DEFENSE ERROR Summary-judgment standard at step two.** Using fraud elements list to
19 demand dispositive merits proof below Baral minimal-merit standard. Defendant uses an elements-
20 of-fraud list to demand a summary judgment standard at the Anti-SLAPP stage. That accurate but
21 narrow use of hornbook law is a mistake because it diverts from the pleaded facts and ignores that
22 only minimal merit and a prima facie showing are required at step two. Listing elements does not
23 win a strike as a matter of law without a proper record.

24 **PLAINTIFF OPPOSITION** Plaintiff overcomes the defense's accurate but narrow use of Service
25 by Medallion v. Clorox Co. because an accurate black-letter elements list does not yield an au-

1 automatic Anti-SLAPP strike. The defense’s error is in diverting from pleaded facts and demanding
2 a summary judgment standard at step two, whereas Baral confirms that only minimal merit and a
3 prima facie case are required for Plaintiff to survive.

4
5 **Orcilla v. Big Sur Lodge, Inc. (2016) 244 Cal.App.4th 982**

6 **Memorandum citations** **Memorandum citations** (Defendant’s memorandum, court file no.
7 10152120): TOA, p. 4, l. 13; argument, Part IV.B.3, pp. 17-19, l. 10 on p. 17 through l. 28
8 on p. 19.

9 **DEFENSE ERROR Merits threshold confusion.** Treating damages nuance as a pleading-stage
10 total bar on fraud survival. Defendant cites Orcilla regarding consequential damages to suggest a
11 total bar on fraud theories. That is a merits-based nuance that does not defeat minimal merit or
12 a prima facie showing at the pleading stage. Treating merits depth as an automatic strike is error
13 because rough edges on damages do not result in a total bar under the Baral standard.

14 **PLAINTIFF OPPOSITION** Plaintiff overcomes the defense’s citation of Orcilla v. Big Sur
15 Lodge, Inc. because a merits issue like consequential damages does not suggest a total bar at the
16 Anti-SLAPP stage. The defense’s error is in treating merits-based nuance as a threshold strike,
17 whereas Plaintiff’s specific allegations of independent economic loss satisfy the minimal merit and
18 prima facie requirements of Baral.

19
20 **Shaolian v. Safeco Ins. Co. (1999) 71 Cal.App.4th 268**

21 **Memorandum citations** **Memorandum citations** (Defendant’s memorandum, court file no.
22 10152120): TOA, p. 4, l. 23; argument, Part IV.B.3, pp. 17-19, l. 10 on p. 17 through l. 28
23 on p. 19.

24 **DEFENSE ERROR Misapplied standing rule.** Extending contract third-party default to fore-
25 close common law fraud channels that Moradi-Shalal preserves. Defendant cites the default rule
26 that third parties need an assignment or judgment to argue for a per se bar on this action. That

misapplies a contract-standing rule to direct fraud theories that were expressly preserved by the Supreme Court. The defense incorrectly assumes that a default rule for contract claims bars common law fraud theories.

PLAINTIFF OPPOSITION Plaintiff overcomes the defense’s misapplication of Shaolian v. Safeco Ins. Co. because a default rule regarding contract standing is not a per se bar on fraud. The defense’s error is in incorrectly assuming no common law fraud can exist, whereas Moradi-Shalal v. Fireman’s Fund Ins. Companies (1988) 46 Cal.3d 287 expressly confirms that common law fraud remains a valid channel for direct third-party suits against carriers.

Zhang v. Superior Court (2013) 57 Cal.4th 364

Memorandum citations **Memorandum citations** (Defendant’s memorandum, court file no. 10152120): TOA, p. 4, l. 33; argument, Part IV.B.3 (UCL subpart), pp. 17-19, l. 10 on p. 17 through l. 28 on p. 19.

DEFENSE ERROR **Channel error.** Overreading enforcement-channel limits as total immunity from common law fraud and UCL prongs. Defendant uses Zhang to argue that the UCL cannot be used to plead around a statutory bar, correctly stating the narrow rule. However, they then commit a channel error by extending this to mean that no fraud or UCL theory can exist at all. That overreads the decision to imply a total (and unauthorized) immunity for traditional torts that do not depend on forbidden statutory enforcement.

PLAINTIFF OPPOSITION Plaintiff overcomes the defense’s channel error in its reading of Zhang v. Superior Court because “no private statutory remedy” does not mean “no common law fraud claim.” The defense’s error lies in ignoring channel separation and attempting to use an accurate narrow rule regarding statutory enforcement to immunize the carrier against traditional common law fraud and business-practice liability.

1 **Moradi-Shalal v. Fireman's Fund Ins. Companies (1988) 46 Cal.3d 287**

2 **Memorandum citations** **Memorandum citations** (Defendant's memorandum, court file no.
3 10152120): TOA, p. 4, l. 11; argument, Part IV.B.3, pp. 17-19, l. 10 on p. 17 through l. 28
4 on p. 19.

5 **DEFENSE ERROR** **Channel error; overread.** Characterizing the holding as a categorical bar
6 on all third-party theories despite preservation of common law fraud. Defendant characterizes this
7 decision as broadly barring all third-party claims until liability is established. That channel error
8 under-reads the opinion's express preservation of common law fraud actions. The actual holding
9 leaves the common law lane open, confirming that the defense's narrative of a categorical bar is
10 overbroad and mistaken.

11 **PLAINTIFF OPPOSITION** Plaintiff overcomes the defense's channel error regarding Moradi-Shalal
12 v. Fireman's Fund Ins. Companies because "no private statutory remedy" is merely a statutory
13 limit, not a bar on fraud. The defense's error is in ignoring preservation and assuming no common
14 law fraud claim can ever proceed. The actual Moradi-Shalal holding expressly preserves the court's
15 jurisdiction over common law fraud actions, confirming that the defense's total bar narrative is a
16 misapplication of the law.

17
18 **VII. CLUSTER F. STATUTORY AUTHORITIES IN THE ANTI-SLAPP**
19 **MEMORANDUM**

20 **Cross-cutting overview** **Overbroad Statutory Abstraction; Conflation of Conduct and Com-**
21 **munication; Conflation of Step One and Step Two; Channel error.** Defendant fuses Code of
22 Civil Procedure section 425.16 with Civil Code section 47(b) so that breadth rhetoric and privilege
23 swallow the complaint. That fusion imports merits and channel arguments at the wrong stage and
24 substitutes policy for Park gravamen and Kimmel conduct lines. Defendant's memorandum repeat-
25 edly **fuses** Code of Civil Procedure section 425.16 with Civil Code section 47(b) so that "protected
26 activity" and "absolute privilege" swallow the complaint as a whole. The same **Overbroad Statu-**

1 **tory Abstraction** and **Conflation of Conduct and Communication** labels apply when the vehicle
2 is **statute text** rather than a case cite: broad definitions and remedial purpose are substituted for
3 gravamen isolation under Park, and undifferentiated “communications” protection is substituted
4 for the conduct line preserved under Kimmel. Where Defendant imports **step-two** merits or **chan-**
5 **nel** arguments while still at step one, **Conflation of Step One and Step Two** and **channel error**
6 (see Baral; Zhang; Moradi-Shalal) remain available.

7
8 **Code of Civil Procedure section 425.16**

9 **Memorandum citations** **Memorandum citations** (Defendant’s memorandum, court file no.
10 10152120): TOA, p. 4, l. 40; argument examples: Part I (Introduction), p. 5, ll. 1-28; Part II
11 (Summary of Argument), p. 6, ll. 1-28; Part IV opening, p. 10, ll. 10-23; Part V (Conclusion),
12 p. 20, ll. 1-16; and throughout Part IV.

13 **DEFENSE ERROR Overbroad Statutory Abstraction; step collapse.** Partial reading of sub-
14 division (e) and breadth rhetoric as completing step one and collapsing protected activity with
15 all alleged wrongs. Defendant correctly recites high-level legislative findings in subdivision (a),
16 including that the statute **shall be construed broadly**, and the two-step framework under subdivi-
17 sion (b) (see City of Cotati v. Cashman, cited in the memorandum). Defendant then emphasizes
18 subdivisions (e)(1) and (e)(2), which describe **written or oral statements or writings** made in
19 connection with official or judicial proceedings, and treats those subdivisions as if they **complete**
20 step one for every allegation, including institutional investigation, denial, and trial conduct. The
21 memorandum also leans on Laker to equate internal investigation with an “official proceeding au-
22 thorized by law” under section 425.16, and concludes that all challenged conduct is “protected
23 activity” under section 425.16. That use of the statute is an **Overbroad Statutory Abstraction**
24 because it treats definitional **breadth** and a **partial** reading of subdivision (e) as a substitute for
25 the mandatory “arising from” and gravamen inquiry. Subdivision (e) also includes clause (4), “any
26 other conduct in furtherance of” petition or free speech in connection with a public issue or inter-
27 est, which does not erase Park’s requirement to separate protected **petitioning** from the **specific**

1 **injurious act** that is the gist of the wrong. Subdivision (b) itself separates the motion to strike from
2 the **probability** showing; blanket rhetorical equations of “all allegations” with protected activity
3 **collapse** those stages.

4 **PLAINTIFF OPPOSITION** Plaintiff overcomes Defendant’s statutory framing by applying
5 **section 425.16 as a whole**: broad construction in subdivision (a) does not create a per se step-one
6 win, and subdivisions (e)(1) and (e)(2) do not **define away** a gravamen that rests on **noncommu-**
7 **nunicative** institutional conduct or omissions. Under Park, the court still isolates whether the claim
8 **arises from** protected activity or from conduct that is **merely incidental** to it. Where Defendant’s
9 theory depends on treating a denial letter or investigation as the **only** act from which injury flows,
10 Park (2017) 2 Cal.5th 1057, 1064, read with City of Cotati v. Cashman (2002) 29 Cal.4th 69,
11 78, supports treating protected speech as **evidence** of a different injurious act when the speech is
12 **not** itself the wrong complained of, without conceding that the **gist** is petitioning. Laker’s own
13 “**absent illegality**” framing limits how far “official proceeding” analogies extend when Plaintiff
14 alleges **fraud, concealment, or systemic** practices, not good-faith claim handling alone.

15
16 **Civil Code section 47 (subdivision (b))**

17 **Memorandum citations** **Memorandum citations** (Defendant’s memorandum, court file no.
18 10152120): TOA, p. 4, l. 39; argument examples: Part IV.A introductory block, p. 10, l. 24
19 through p. 12, l. 5; Part IV.B.1, p. 15, l. 23 through p. 16, l. 23; Notice, pp. 2-3, ll. 5-12.

20 **DEFENSE ERROR** **Truncated statute; Conflation of Conduct and Communication.** Quot-
21 ing subdivision (b) branch while ignoring exceptions and treating privilege as absolute against
22 fraud and conduct theories. Defendant quotes the opening branch of subdivision (b), describing
23 privileged publications in legislative, judicial, or other official proceedings, and then treats **sec-**
24 **tion 47(b)** as an **absolute** bar to fraud and to both Anti-SLAPP steps, including through Briggs
25 (“equally entitled to the benefits of section 425.16”) and Pollock (“doubts” favor privilege). That
26 presentation is structurally **incomplete** relative to the **same subdivision**: section 47(b) contains
27 **numbered exceptions**, including communications in furtherance of **intentional destruction or**

1 **alteration of physical evidence** (subdivision (b)(2)) and communications **knowingly concealing**
2 **the existence of insurance** in a judicial proceeding (subdivision (b)(3)). The memorandum does
3 not integrate those exceptions into its “all statements are privileged” thesis. Even aside from ex-
4 ceptions, Defendant’s move is a **Conflation of Conduct and Communication**: it assumes that
5 every alleged wrong is a **communication** subject to privilege, rather than **conduct** that may be
6 evidenced by communications, a line Kimmel and the case clusters above already stress.

7 **PLAINTIFF OPPOSITION** Plaintiff overcomes Defendant’s use of section 47(b) by insisting
8 on **full subdivision context** and **conduct-versus-communication** separation. Privilege attaches
9 to **qualifying communications**, not to every **institutional** practice or omission that the complaint
10 targets. Action Apartment and Flatley (Cluster C) supply limits on extending the privilege where
11 **unlawful conduct** or fraud on the court is alleged, so that section 47(b) cannot operate as a **blanket**
12 **immunity** to all tort theories. Where the complaint’s gravamen is **noncommunicative** wrongdo-
13 ing, or falls within statutory **exceptions** Plaintiff is prepared to prove, Defendant cannot rely on a
14 **truncated** quotation of (b) to strike the action as a matter of law at step one.

15
16 **Business and Professions Code section 17200**

17 **Memorandum citations** **Memorandum citations** (Defendant’s memorandum, court file no.
18 10152120): TOA, p. 4, l. 38; argument: Part II (Summary of Argument), p. 6, ll. 1-28; Part
19 IV.B.3, pp. 17-19, l. 10 on p. 17 through l. 28 on p. 19.

20 **DEFENSE ERROR** **Policy gloss; Channel error.** Adding non-text UCL policy to narrow
21 prongs and overreading Zhang / Moradi-Shalal as total immunity. Defendant quotes the **defini-**
22 **tional** sentence of section 17200 accurately: unfair competition includes **unlawful, unfair, or**
23 **fraudulent** business acts or practices and related advertising categories. The memorandum then
24 adds **non-statutory** policy claims (for example, that the UCL is “not meant” as a vehicle for dis-
25 pute over a third-party claim denial, and that it is aimed at “predatory” marketplace behavior).
26 Those glosses are **argument**, not text of section 17200. Defendant couples the UCL discussion
27 with Zhang and Moradi-Shalal to argue that **channel** limits foreclose Plaintiff’s theory. That strat-

egy risks **channel error** if it treats a **narrow** holding about **pleading around** a statutory bar as a **total** immunity against any **unlawful** or **fraudulent** business-practice theory that does not depend on the forbidden channel.

PLAINTIFF OPPOSITION Plaintiff overcomes Defendant's use of section 17200 by **separating accurate black-letter definition from Defendant's policy narrative**. The **unlawful** prong can incorporate violations of other law; the **fraudulent** prong reaches deceptive practices in commerce as defined by California UCL jurisprudence. Zhang and Moradi-Shalal address **specific** enforcement limits (Cluster E); they do not **rewrite** section 17200's text or eliminate **minimal merit** analysis under Baral at Anti-SLAPP step two. Defendant's insistence that a jury verdict on **underlying tort** liability ends all **UCL** analysis confuses **merits** outcomes in one action with **elements** and **channel** questions in this action.

Insurance Code section 790.03 (with 10 Cal. Code Regs. section 2695.7)

Memorandum citations **Memorandum citations** (Defendant's memorandum, court file no. 10152120): TOA: Insurance Code section 790.03 at p. 4, l. 41; 10 Cal. Code Regs. section 2695.7 at p. 4, l. 44; argument, Part IV.A.1, pp. 12-13, ll. 6-12.

DEFENSE ERROR **Compliance-to-immunity leap; Overbroad Statutory Abstraction.** Inferring Anti-SLAPP immunity and fraud disproof from regulatory timing and standards without Park or Baral analysis. Defendant invokes section 790.03 together with **10 Cal. Code Regs. section 2695.7** to argue that CSAA satisfied a **duty to investigate promptly** and issue a timely denial, and that this compliance supports characterization of the denial as **protected** pre-litigation activity (including under Aronson). The **verbatim** timing language quoted in the memorandum tracks the **regulation**, while **790.03** supplies the broader **unfair claims settlement practices** framework, particularly subdivision (h). The inferential leap is the problem: **compliance** with claim-handling norms (even if true) does **not** establish that Plaintiff's causes of action **arise from** protected **petitioning** under section 425.16, nor does it prove the **absence** of **fraud** or **unfair** practices as a matter of law at the Anti-SLAPP stage. Defendant also cites Zhang for the proposition that **790.03(h)** vi-

1 olations are **not** independently actionable in certain **UCL** configurations; that limitation **does not**
2 convert statutory claim standards into a **complete** immunity shield against all theories Plaintiff
3 pleads.

4 **PLAINTIFF OPPOSITION** Plaintiff overcomes Defendant’s use of section 790.03 by treating
5 it as **what it is: a source of public policy and standards** for insurer conduct in the business of
6 insurance, not a **substitute** for Park gravamen analysis or for Baral’s **probability** standard. Alle-
7 gations that go to **misrepresentation, concealment, or systematic mishandling** are not **refuted**
8 by pointing to **any single** regulatory timeline. At step two, Defendant still cannot **judicially notice**
9 away disputed facts; at step one, **790.03** cannot **collapse** noncommunicative wrongs into priv-
10 ileged **communications**. The memorandum’s blend of **790.03**, **CCR 2695.7**, and Anti-SLAPP
11 **immunity** is an **Overbroad Statutory Abstraction** that moves from **regulatory compliance** to
12 **civil immunity** without the intermediate statutory and precedential steps California law requires.

14 **VIII. MASTER INDEX: AUTHORITY, DEFENSE ANALYTICAL LA-**
15 **BELS, MEMORANDUM LOCATION (DEFENDANT’S MEMORANDUM,**
16 **COURT FILE NO. 10152120)**

17 **TOA** means Table of Authorities on Defendant’s memorandum. Line numbers reset each page.
18 The first three rows reference separate court-file PDFs, not the memorandum. Shared argument
19 blocks may repeat locations across authorities.

Authority	Defense error	Memo location
Notice of Motion (court file no. 10152119; not part of Defendant’s memorandum)	Procedural overreach	pp. 2-3, ll. 5-12; p. 3, l. 16
Request for Judicial Notice (court file no. 10152117)	Misuse of judicial notice	pp. 2-4, ll. 1-28 (each page)

Authority	Defense error	Memo location
Declaration of Tyler J. O'Connell (court file no. 10152121)	Evidentiary and legal-conclusion defects	pp. 2-4, ll. 1-28 (each page)
<u>Club Members for an Honest Election v. Sierra Club</u>	Overbroad Statutory Abstraction	TOA p. 3, l. 23; argument p. 10, ll. 10-23
<u>Fremont Reorganizing Corp. v. Faigin</u>	Overbroad Statutory Abstraction	TOA p. 3, l. 33; argument p. 10, ll. 10-23
<u>City of Cotati v. Cashman</u>	Overbroad Statutory Abstraction	TOA p. 3, l. 19; argument p. 10, ll. 10-23; p. 15, ll. 11-22
<u>Martinez v. Metabolife</u>	Overbroad Statutory Abstraction	TOA p. 4, l. 9; argument p. 10, l. 24 through p. 12, l. 5
<u>Gilbert v. Sykes</u>	Overbroad Statutory Abstraction	TOA p. 3, l. 35; argument p. 10, l. 24 through p. 12, l. 5
<u>Trinity Risk Mgmt. v. Simplified Lab. Staffing</u>	Overbroad Statutory Abstraction; Conflation of Conduct and Communication	TOA p. 4, l. 27; argument p. 10, l. 24 through p. 12, l. 5
<u>Digerati Holdings v. Young Money Entertainment</u>	Conflation of Conduct and Communication	TOA p. 3, l. 25; argument p. 10, l. 24 through p. 12, l. 5; p. 15, l. 23 through p. 16, l. 23
<u>Hunter v. CBS Broadcasting, Inc.</u>	Gravamen misidentification	TOA p. 3, l. 43; argument p. 10, l. 24 through p. 12, l. 5
<u>Church of Scientology v. Wollersheim</u>	Incomplete collateral-attack doctrine	TOA p. 3, l. 17; argument p. 10, l. 24 through p. 12, l. 5
<u>Bergstein v. Stroock & Stroock & Lavan LLP</u>	Conflation of Conduct and Communication	TOA p. 3, l. 11; argument p. 10, l. 24 through p. 12, l. 5

Authority	Defense error	Memo location
<u>Kashian v. Harriman</u>	Overbroad Statutory Abstraction	TOA p. 4, l. 1; argument pp. 12-13, ll. 6-12; p. 13, l. 13 through p. 14, l. 4
<u>A.F. Brown Elec. Contractor, Inc. v. Rhino Elec. Supply, Inc.</u>	Overbroad Statutory Abstraction	TOA p. 3, l. 5; argument pp. 12-13, ll. 6-12
<u>Adams v. Superior Court</u>	Categorical Immunity Fallacy; Conflation of Conduct and Communication	TOA p. 3, l. 7; argument p. 13, l. 13 through p. 14, l. 4
<u>Aronson v. Kinsella</u>	Conflation of Conduct and Communication	TOA p. 3, l. 9; argument pp. 12-13, ll. 6-12; p. 14, l. 5 through p. 15, l. 10
<u>Cabral v. Martins</u>	Conflation of Conduct and Communication; Overbroad Statutory Abstraction	TOA p. 3, l. 15; argument p. 13, l. 13 through p. 14, l. 4
<u>People ex rel. Fire Ins. Exchange v. Anapol</u>	Overbroad Statutory Abstraction	TOA p. 4, l. 15; argument pp. 12-13, ll. 6-12
<u>Laker v. Bd. of Trustees</u>	Overbroad Statutory Abstraction	TOA p. 4, l. 7; argument pp. 12-13, ll. 6-12; p. 15, l. 23 through p. 16, l. 23
<u>Huntingdon Life Sciences, Inc. v. Stop Huntingdon Animal Cruelty USA, Inc.</u>	Conflation of Step One and Step Two	TOA p. 3, l. 45; argument p. 15, ll. 11-22
<u>City of Colton v. Singletary</u>	Overbroad Statutory Abstraction	TOA p. 3, l. 21; argument p. 14, l. 5 through p. 15, l. 10

Authority	Defense error	Memo location
<u>Graham-Sult v. Clainos</u>	Misplaced federal authority	TOA p. 3, l. 37; argument p. 14, l. 5 through p. 15, l. 10
<u>Dove Audio, Inc. v. Rosenfeld</u>	Overbroad Statutory Abstraction	TOA p. 3, l. 27; argument p. 14, l. 5 through p. 15, l. 10
<u>Home Ins. Co. v. Zurich Ins. Co.</u>	False analogy (non sequitur)	TOA p. 3, l. 41; argument pp. 12-13, ll. 6-12
<u>Briggs v. Eden Council for Hope & Opportunity</u>	Overbroad in pari materia bridge	TOA p. 3, l. 13; argument p. 15, l. 23 through p. 16, l. 23
<u>Hagberg v. California Federal Bank</u>	Conflation of Conduct and Communication	TOA p. 3, l. 39; argument pp. 12-13, ll. 6-12; p. 15, l. 23 through p. 16, l. 23
<u>Laffer v. Levinson</u>	Overbroad privilege	TOA p. 4, l. 5; argument p. 15, l. 23 through p. 16, l. 23
<u>Pollock v. University of Southern California</u>	Categorical Immunity Fallacy	TOA p. 4, l. 17; argument p. 15, l. 23 through p. 16, l. 23
<u>L.G. v. M.B.</u>	Misapplication to facts	TOA p. 4, l. 3; argument p. 10, l. 24 through p. 12, l. 5
<u>Flatley v. Mauro</u>	Selective citation	TOA p. 3, l. 31; argument pp. 12-13, ll. 6-12
<u>F.E.V. v. City of Anaheim</u>	Collateral attack overbreadth	TOA p. 3, l. 29; argument p. 16, l. 24 through p. 17, l. 9
<u>Rico v. Nasser Bros.</u>	Collateral attack overbreadth	TOA p. 4, l. 19; argument p. 16, l. 24 through p. 17, l. 9
<u>Wouldridge v. Burns</u>	Misidentification of claim	TOA p. 4, l. 31; argument p. 16, l. 24 through p. 17, l. 9

Authority	Defense error	Memo location
<u>Singh v. Lipworth</u>	Preclusion overbreadth	TOA p. 4, l. 25; argument p. 16, l. 24 through p. 17, l. 9
<u>United States v. Throckmorton</u>	Non-California law substitution	TOA p. 4, l. 29; argument pp. 17-19, l. 10 on p. 17 through l. 28 on p. 19
<u>Service by Medallion v. Clorox Co.</u>	Summary-judgment standard at step two	TOA p. 4, l. 21; argument pp. 17-19, l. 10 on p. 17 through l. 28 on p. 19
<u>Orcilla v. Big Sur Lodge, Inc.</u>	Merits threshold confusion	TOA p. 4, l. 13; argument pp. 17-19, l. 10 on p. 17 through l. 28 on p. 19
<u>Shaolian v. Safeco Ins. Co.</u>	Misapplied standing rule	TOA p. 4, l. 23; argument pp. 17-19, l. 10 on p. 17 through l. 28 on p. 19
<u>Zhang v. Superior Court</u>	Channel error	TOA p. 4, l. 33; argument pp. 17-19, l. 10 on p. 17 through l. 28 on p. 19
<u>Moradi-Shalal v. Fireman's Fund Ins. Companies</u>	Channel error; overread	TOA p. 4, l. 11; argument pp. 17-19, l. 10 on p. 17 through l. 28 on p. 19
Code of Civil Procedure section 425.16	Overbroad Statutory Abstraction; step collapse	TOA p. 4, l. 40; argument p. 5, ll. 1-28; p. 6, ll. 1-28; p. 10, ll. 10-23; p. 20, ll. 1-16; throughout Part IV

Authority	Defense error	Memo location
Civil Code section 47(b)	Truncated statute; Conflation of Conduct and Communication	TOA p. 4, l. 39; argument p. 10, l. 24 through p. 12, l. 5; p. 15, l. 23 through p. 16, l. 23; <u>Notice</u> (court file no. 10152119) pp. 2-3, ll. 5-12
Business and Professions Code section 17200	Policy gloss; Channel error	TOA p. 4, l. 38; argument p. 6, ll. 1-28; pp. 17-19, l. 10 on p. 17 through l. 28 on p. 19
Insurance Code section 790.03 and 10 Cal. Code Regs. section 2695.7	Compliance-to-immunity leap; Overbroad Statutory Abstraction	TOA p. 4, ll. 41 and 44; argument pp. 12-13, ll. 6-12

End of Appendix A.

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